

District- Magura

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Ashraf Ali

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Ujjal Paul, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 18th March 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

In this case under Sections 302/201/379/34 of the Penal Code, 1860 the accused petitioner has made a confession under Section 164 of the Code of Criminal Procedure which appears to be inculpatory in nature.

On consideration of above materials on record we are not inclined to grant bail to the petitioner at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Additional Session Judge, 1st Court, Magura to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment at the instance of the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the petitioner with sympathy and in accordance with law.

The Superintendent of Police, Magura is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

The Public Prosecutor, Magura is directed not to submit any petition for adjournment if any prosecution witness appears to give evidence.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, learned Additional Session Judge, 1st Court, Magura, Superintendent of Police, Magura and Public Prosecutor, Magura at once.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER